

Resolution Agreement

Purdue University - Global, Indiana OCR Docket Number 05-22-6001

To resolve the above-referenced compliance review brought under Section 504 of the Rehabilitation Act of 1973 (Section 504), and Title II of the Americans with Disabilities Act (Title II), the Office for Civil Rights (OCR) of the U.S. Department of Education and Purdue University – Global (the University) enter into the following Agreement. This Agreement is entered into voluntarily, and it does not constitute an admission of liability, non-compliance, or wrongdoing by the University.

Scope

The scope of this Agreement is limited to the University's online courses, and any learning management systems housing such courses, including all online-course-related electronic and information technology.

Definitions

“Learning Management System” (LMS) means a software application that the University makes available to students and uses to plan, create, administer, document, track, report, deliver, and maintain educational courses and course content and assess student performance, including by enabling collaboration and communication among members of the class and between class members and instructors, by supporting the assessment of learning outcomes, and by supporting formative and summative feedback to students.

“Course Content” means any information published to the LMS for students in the context of a particular course. Course Content includes but is not limited to instructor/teacher created content, vendor or third-party created content such as e-textbooks, articles, or videos, and instructional support and educational applications.

Action Items Regarding Online Courses

The University will take the following steps to address the accessibility of its LMS(s) and Course Content to help ensure its online educational programs, services, and activities are accessible to people with disabilities:

1. Adopt an Accessibility Standard. Within 30 days of signing this Agreement, the University will adopt a widely-accepted accessibility standard, such as the Web Content Accessibility Guidelines (WCAG), version 2.1, level AA, or another standard that requires an equivalent level of accessibility for people with disabilities.
 - a. Reporting Provision: Within 30 days of signing this Agreement, the University will submit for OCR's review and approval its chosen accessibility standard.
2. Provide Notice. Within 30 days of signing this Agreement, the University will implement and maintain an accessible process for people with disabilities to alert the University to LMS- or Course-Content-related accessibility concerns. The University will prominently post a fully-accessible Notice on each LMS describing how people with disabilities can

inform the University of any technology-based barriers to access they have encountered and request access to the LMS or Course Content posted on the LMS. The University must adopt protocols and reasonably prompt timeframes for response and remediation that take into account the pace of the online course(s) for which the barriers have been reported. For students registered with the University, the process may include a requirement that the student enroll with the University's Student Accessibility Services.

- a. Reporting Provision: Within 30 days of signing this Agreement, the University will submit for OCR's review and approval the location and content of its Notice(s), as well as its protocols and timeframes for responding to reports of barriers.
3. Conduct an Audit of LMS and Course Content. Within six months of signing this Agreement, the University shall complete an Audit of each of its LMSs and a representative sample of its online courses to identify barriers to access for people with disabilities. The Audit shall consist of taking an inventory and engaging in manual testing to identify barriers, as follows:
 - a. Undertake an Inventory of LMS and Online Course Content to be Tested. The inventory will consist of each LMS and a sampling for each academic department of at least twenty percent of that department's online courses chosen from those with the largest overall enrollment.
 - b. Scope of Testing for LMS. For each LMS, the Audit will include, but not be limited to, site navigation, templates, and common features such as calendars, plagiarism checkers, proctoring software, word processors, grade reports, and communication or messaging portals.
 - c. Scope of Testing for Course Content. For each course in the inventory, the Audit will include all information that is typically available to or generated for students, including the course syllabus, course-specific calendars, modules, educational materials, assignments (including associated electronic documents, videos, and third-party systems integrated with the LMS for access by students), extra credit and optional assignment materials, processes for turning in assignments, quizzes, exams, announcements, intra-course communications such as group chats or discussion boards, and grade reporting. To the extent that any aspect of Course Content has been included in the LMS Audit, testing does not need to be duplicated.
 - d. Engage in Manual Testing to Identify Barriers. For everything falling within the Scope of Testing, the University will engage in robust manual testing to identify barriers to access for people with disabilities. The testing shall, at a minimum, meaningfully incorporate the protocols and address the questions set out in Appendix A. The University will assess vendor or third-party hosted pages, features, courses, and content in its inventory along with pages, features, courses, and content over which the University has full operational control. All

testing will be undertaken from the perspective of a representative student account, rather than a faculty or administrator account perspective.

- e. Reporting Provision: Within six months of signing this Agreement, the University will submit for OCR's review and approval the results of its Audit, with sufficient detail so OCR can understand which LMSs and Course Content were tested, what testing protocols were used, which features or content were identified to have barriers to access for people with disabilities, and the nature of those barriers. The Audit Report will include the information necessary for OCR to access each tested LMS and online course, such as links, usernames, and passwords, from the perspective of a representative student account, so OCR can conduct its own testing as needed to gauge the thoroughness and accuracy of the University's Audit.
4. Engage in Remediation or Replacement. As barriers to access are identified through its Audit, the University will remediate those barriers or replace the LMS(s), LMS components, or Course Content with accessible substitutes. Replacement or remediation will be completed within nine months of the signature date of this Agreement. Identification of any non-de minimis barriers will trigger an obligation for the University to engage immediately in an interactive process with any student with a disability in the associated course who is impacted by the barrier, to determine appropriate academic adjustments or auxiliary aids and services designed to overcome the barrier as an interim measure until the barrier has been remediated. All barrier remediation – or selected substitutes – will conform to the University's chosen accessibility standard.
- a. Where the University does not have the ability to effectuate immediate, full remediation of a vendor's or third party's technology, the University will direct the vendor or third party to complete its remediation of all barriers within nine months of the signature date of this Agreement. If the vendor or third party fails to remediate timely all barriers, the University will exercise all avenues for compliance, including seeking to replace the vendor's or third party's product or services, or moving or duplicating the LMS or Course Content as appropriate.
 - b. Reporting Provision: On a monthly basis, until all barriers have been removed, the University will report to OCR the details of how it is meeting the needs of individual affected students in light of barriers it has identified, including by providing copies of any changes in students' approved academic adjustments. No later than nine months after this Agreement was signed, the University will notify OCR that it has fully remediated all barriers identified on the inventoried pages of the LMS and the inventoried online courses, including associated electronic documents, videos, and third-party systems integrated with the LMS and/or online courses for access.
5. Update Testing and Remediation Protocols. Upon receipt of the notice required by the preceding paragraph, or earlier if requested by the University, OCR will assess the effectiveness of the University's testing protocols and remediation steps by conducting its

own testing of each LMS and a representative sample of Course Content, using the University-adopted standard as an appropriate measure of compliance. The University will then participate in all video conferences requested by OCR, and, when appropriate, request relevant vendors to participate in such conferences, so OCR can share concerns regarding any remaining barriers that impede the ability of people with disabilities to have equal opportunities to enjoy the University's underlying educational programs, services, and activities. These video conferences may also address any noted deficiencies regarding the Notice required by paragraph 2 of this Agreement.

- a. Based on OCR's concerns shared during the video conferences, the University will:
 - i. Make appropriate changes to its testing and remediation protocols, and may require its vendor(s) to engage in appropriate remediation;
 - ii. Re-test or engage in additional remediation or replacement tailored to address OCR's concerns as appropriate; and
 - iii. Within 30 days of the relevant video conference, notify OCR that the University is ready for OCR to re-test the applicable LMS or Course Content.

This process shall continue until, in OCR's judgment, the University's testing and remediation or replacement protocols result in equal opportunities for people with disabilities.

6. Develop a Plan to Maintain Accessible Features. The University will develop a Plan regarding how it intends to maintain the accessibility of each LMS and its Course Content. The Plan may address: updated testing and remediation protocols; revised procurement protocols and language; ongoing training for procurement officials and content creators, including faculty and staff involved in authoring or selecting Course Content; designations of responsibility; and appropriate levels and sources of funding to support ongoing efforts.

- a. Reporting Provision: Within nine months of signing this Agreement, the University will submit for OCR's review and approval its Plan to Maintain Accessible Features for its LMS(s) and Course Content.

Disclaimer. Nothing in this Agreement should be construed to mean that any content and functionality – including lower-priority content and functionality – is not subject to the requirements of Section 504 and Title II.

The University will comply fully with Title II of the ADA, including newly-added Subpart H when it goes into effect. See 28 C.F.R. §§ 35.200 et seq. The regulatory language will supersede the terms of this Agreement, to the extent there are any conflicts or inconsistencies.

By signing the Agreement, the University agrees to provide data and other information in a timely manner in accordance with the reporting requirements of this Agreement. During the monitoring of the Agreement, if necessary, OCR may visit the University, interview staff and students, and request such additional reports or data as are necessary for OCR to determine whether the University has fulfilled the terms of the Agreement.

The University understands that OCR will not close the monitoring of the Agreement until such time as OCR determines that the University is in compliance with the terms of the Agreement and the statutes and regulations at issue in the case.

The University understands that OCR may initiate administrative enforcement proceedings or refer the case to the Department of Justice (DOJ) for judicial proceedings in the event of breach. Before initiating such proceedings, OCR will give the University notice of the alleged breach and 60 calendar days to cure the alleged breach.

This Agreement will become effective upon the signature of the representative for the University, set out below.

/s/

Christopher A. Ruhl
Chief Executive Officer
Purdue Global

November 20, 2024

Date

Appendix A

For the purposes of this Agreement, testing must address these protocols and questions, which only represent a starting point, rather than a comprehensive set, for assessing digital technology to ensure access to people with disabilities. See [OCR's video series](#) for more information.

For web pages: Check the following across different browsers using different types of hardware (for documentation, please specify the browsers by version and different desktop/laptop configurations):

- Keyboard access: Can users access all functions and content, and complete all tasks, independently by using only the keyboard (<tab>, <enter>, <spacebar>, <esc>, and arrow keys)? Verify in particular:
 - There are no keyboard traps that would prevent a user from advancing through the entire page, such as an automatically-refreshing social media embedded feed (*tip: try to tab very, very slowly through any such feed to observe whether a user can close it, or move past it, at a reasonable point; if the feed keeps refreshing by automatically adding additional entries to be shown, it causes a trap for those who are unable to use quick keyboard strokes – or a mouse – to navigate*);
 - Expandable elements can not only be expanded, but can also be collapsed automatically or with a keyboard command, so they do not block other content.
- Logical reading order: Does keyboard navigation follow a logical, predictable order?
- Skip links: Can keyboard-only users bypass long navigation menus, embedded social media feeds, etc., without having to use excessive tabbing?
- Visual focus indicator: Can users visually track where they are located on the page while navigating with a keyboard?
- Alternative (Alt) text: Are all important images and graphics labelled with meaningful text, associated captions, or adjoining descriptions so, for example, people who are blind and use assistive technology will have access to the relevant information contained in the image or graphic? For linked images, does the alternative text tell users where the link will take them, rather than describe the image?
- Links: Are links well-named and unambiguous so users who are blind– without having to read nearby content – will understand the purpose and destination of each link? Common examples of ambiguous link names include “click here,” “read more,” “see all,” “http://...”-type, or “event notice,” and other ambiguous phrases.
- Color alone: Are there any instances where color alone distinguishes an object or state? If so, add another way to distinguish the object or state. For example, make sure color is not the only way to distinguish link text from the surrounding paragraph text, and ensure

color-coding is not the exclusive way used to convey important calendar dates (e.g., “no school” dates are marked in purple).

- Color contrast: Using an eyedropper tool or other manual method (automated testing is generally insufficient unless manually verified), is there at least a 4.5:1 contrast ratio for normal size text and a 3:1 contrast ratio for large scale text, comparing foreground and background colors of all text elements and text inside graphics? Text inside logos can be ignored for these purposes.
- Tables: Does the page avoid using layout tables? If data tables are present, are they necessary to convey information, or could a more accessible means of presentation be considered instead? If a data table is used, is it simple, so no cells span multiple columns or rows? Are column and row headers programmatically labelled?
- Buttons, form controls, and other operable elements: Are they labelled appropriately, both programmatically and visually? Do the visual labels continue to be properly associated with the elements when the screen is enlarged? If the elements have different states (such as form fields that are required for successful submission), are those conveyed by something other than color alone?
- Heading structure: Are headings programmatically labelled with a meaningful hierarchy, so people who are blind and using a screen reader can navigate a page according to its headings, listen to a list of headings, and skip to where they want to begin reading?
- Embedded videos and slide carousels: Where there are embedded videos or carousels, if they launch or rotate automatically, is that behavior necessary? If so, can a user pause or stop the video or carousel, and later replay the video or carousel, with keyboard commands? The ability to stop the video or carousel rotation can be important, not just while users are on the video or carousel, but while they are in other parts of the page.
- Magnification: Have you re-tested everything when content is magnified to the “point of reflow,” or in “responsive mode,” when the formatting changes to be more mobile-friendly (typically around 200% on standard laptop screens)? Are all contents and all functionality preserved and useful?
 - Paying particular attention to any “hamburger menus,” or expandable menus, can they be opened, navigated (including any sub-level items), and closed automatically or easily with the keyboard?
 - Is logical reading order on the page preserved, without the need to scroll right to left? If vertical scrolling is required inside windows or objects, can it be done with the keyboard?
 - Do elements meant to be together (such as form labels and text entry boxes) stay together upon magnification?

For electronic documents: In addition to addressing the questions above, have you conducted an accessibility review of your documents using the software's accessibility checker (e.g., "Check Accessibility" feature in Microsoft Word, "Accessibility Check" feature in Adobe Acrobat Pro DC, etc.)?

For videos:

- Is captioning present or is a transcript available? Transcripts should only be used when the audio can be fully understood separately from viewing the video and does not reference video content.
- Does the captioning or transcript meaningfully convey the contents of the audio track (not just phonetically)?
- Does the captioning or transcript indicate the names or appropriate descriptions of the speakers, if more than one person is speaking?
- Does the captioning or transcript use capitalization and punctuation appropriately, if that is important to understanding the contents?
- Is important on-screen information also conveyed audibly, so people who are blind or have low vision have access to the contents?

For social media posts:

- If graphic images are used, are they accompanied by text that conveys the same information?
- If videos are used, are they accessible as described above?